



PLANNING &
DEVELOPMENT

2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 637-6282

cheyennecity.org

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Morgan Dennis
Subject: PUDC-26-40 O'Neil Edge – Final Plat
Date: April 8, 2026

Background:

The item for consideration is a Final Plat. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 4/13/2026
- Public Services Committee 4/20/2026
- Final Consideration 4/27/2026

Planning Commission Recommendation:

The Planning Commission heard this item at their April 6, 2026, meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Public Comment

As of the creation of this memo (April 8, 2026), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 104 views and no comments.

Attachments:

1. Resolution
2. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR ONEIL EDGE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, LOCATED SOUTHWEST OF THE INTERSECTION OF WEST 5TH STREET AND O'NEIL AVENUE."

WHEREAS, Cheyenne Real Estate LLC 401K, and CO and KO Carmine 401k, have subdivided certain land located southwest of the intersection of West 5th Street and O'Neil Avenue in accordance with applicable Wyoming Statutes;

WHEREAS, Cheyenne Real Estate LLC 401K, and CO and KO Carmine 401k, the owners of the above-described land, have caused a subdivision plat of said land to be prepared, acknowledged and certified, particularly describing the lots, blocks, easements and rights-of-way contained therein; and

WHEREAS, the above-described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration, the Planning Commission has recommended approval of said plat to the Governing Body, and the plat has been duly executed by the Development Office.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the subdivision described as ONeil Edge, Cheyenne, Wyoming, be and the same is hereby approved and confirmed as presented, and that the Mayor and the City Clerk are hereby authorized, empowered, and directed to execute the final plat.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2026.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk

CITY OF
CHEYENNE
— PLANNING & DEVELOPMENT —

CITY OF CHEYENNE PLANNING COMMISSION
APRIL 6, 2026
STAFF REPORT

FILE: PUDC-26-40: O'Neil Edge (Expedited Review)

REQUEST: Subdivision of two previously platted lots (one ownership parcel) into five lots.

LOCATION: Southwest of the intersection of W 5th St and O'Neil Ave

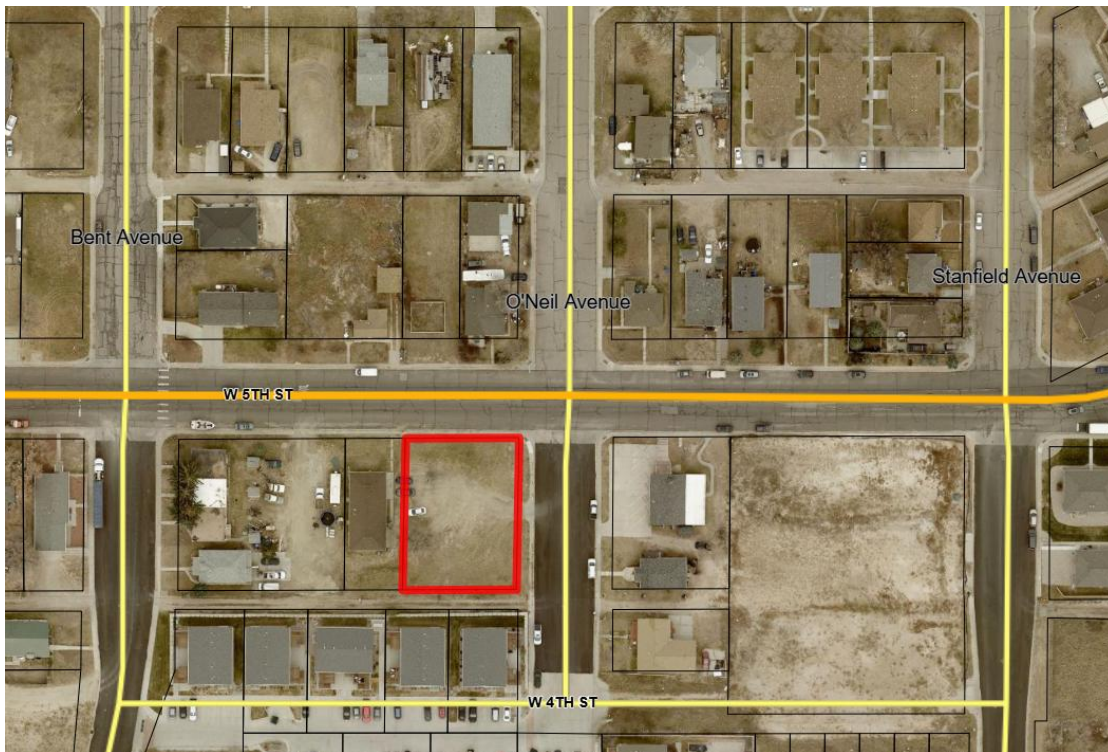
APPLICANT: Brandon Swain

OWNER: Brandon Swain

ZONING: MR – Medium-density Residential.

PURPOSE: A plat creating 5 Lots for residential development.

PREPARED BY: Morgan Dennis, Planner I



RECOMMENDED MOTION:

Move to **approve** the O'Neil Edge Preliminary Plat, advancing the Final Plat to the Governing Body with staff recommended conditions:

- a. A water and sewer service line easement be added to the plat map prior to signing of the plat.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a preliminary plat for roughly 0.30 acres of land. The proposed plat would subdivide the parcel into 5 lots for residential development.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	MR Medium-density Residential	Vacant
North	Urban Residential	MR Medium-density Residential	Single-family dwelling, Vacant
South	Urban Residential	NR-3 Neighborhood Residential – High Density	Four-plex Multifamily dwelling
East	Urban Residential	MR Medium-density Residential	Duplex, Multifamily dwelling
West	Urban Residential	MR Medium-density Residential	Assembly (church)

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d – a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

On the future land use map found in PlanCheyenne, the subject land and surrounding area has been designated as Urban Residential. The Urban Residential designation encourages a range of residential uses. The proposed plat is to provide additional single-family residential to the area.

Foundation 1 of PlanCheyenne encourages community growth. This development is in response to market demands and is within the Urban Service Boundary. The development patterns proposed by this plat are compatible with the designations found on the future land use map.

The application **complies** with this review criterion.

2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)

The proposed plat is for residential development. Surrounding this proposed area is residential and future development for area is projected to be residential as well considering the Future Land Use map designates this area as Urban Residential. Any residential development with this designation is appropriate. It will not create any impact in the area.

The application **complies** with this review criterion.

3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)

Community Facility Fees (4.2):

For fees based on acreage, the area of the property is pro-rated to the nearest tenth of an acre. Lands reserved as unbuildable (for right-of-way, detention, parks, remainder lots, etc), are exempt from fees. Per UDC Section 4.2.5, Table 4-2, Land acquisition, Infrastructure, and Enhancement Fees are all payable at the issuance of a building permit for each structure.

Transportation Network (4.3):

This plat is not creating any changes to the transportation network. Accesses will be limited unto 5th Street as the street is designated a Major Collector on the Major Street Plan – however all lots have access to either O'Neil or the Alley.

Open Space (4.4):

There is city park a little over 1/4 of a mile from the proposed plat site. There are also pieces of the Greenway path within 1/4 of a mile of the site. During development process of this site the applicant will need to meet open space requirements as prescribed by the UDC.

Required Improvements (4.5):

This plat will need to provide a sewer and water utility service line easement to the lots to demonstrate that utilities will be able to extend to all buildable lots.

Public Safety Fees (4.6):

Public Safety Fees are required at the time of construction of any residential building on any of the proposed lots. Per UDC Section 4.6.3.b, Public Safety Fees are payable at the issuance of a building permit for each structure.

The application **complies** with this review criterion, with conditions.

- 4) Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No specific phasing is proposed with this project.

Review criterion **not applicable**.

- 5) The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

Drainage:

A drainage study was submitted and reviewed. There were no concerns with drainage at the plat level for the project as presented.

Traffic:

A transportation study was submitted and reviewed. There were no concerns with traffic at the plat level for the project as presented.

The application **complies** with this review criterion.

- 6) Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

All proposed lots are buildable. They would be considered four SD3 lots and one DD7 lot type by the UDC. The proposed lot type is allowable in the MR zone district and can conform with all necessary setbacks and frontage.

The application **complies** with this review criterion.

- 7) All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

All lot proposed are buildable lots per the UDC.

Review criterion **not applicable**.

8) The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)

This plat will not create any undue influence on existing or potential development considering existing zoning and Comprehensive Plan policies.

The application **complies** with this review criterion.

9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)

City staff is satisfied that this proposed plat would not adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)

Remainder lots are not proposed with this plat.

The application **complies** with this review criterion.

11) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)

The Final Plat submitted with the application is substantially similar to the preliminary plat submitted, but will need a sewer and water utility service line easement.

The application **complies** with this review criterion, with conditions.

12) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)

Through staffs review, the plat would need to add a sewer and water utility service line easement before signing the final plat.

The application **complies** with this review criterion, with conditions.

13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion, with conditions.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways:

- **Legal Notice** in the Wyoming Tribune Eagle published on March 23, 2026
- **Posted Notice** Evidence of posted notice was provided showing that the signs were posted on March 30, 2026.
- **Internet Posting** on connect.cheyennecity.org on February 24, 2026

As of the publication of the Staff Report (March 30, 2026), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 104 views and no comments.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Technical corrections
2. Proposed lots are nonconforming lots within the MR zone district and for the SD3 lot types.
3. A water and sewer utility easement is required for extension of utility to all lots.

CONCLUSION:

Staff analysis is that the application meets the review criteria outlined by the UDC. The plat does not provide a necessary sewer and water service line easement for extension of these utilities to each property.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body.
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body. (**Staff Recommendation**)

3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

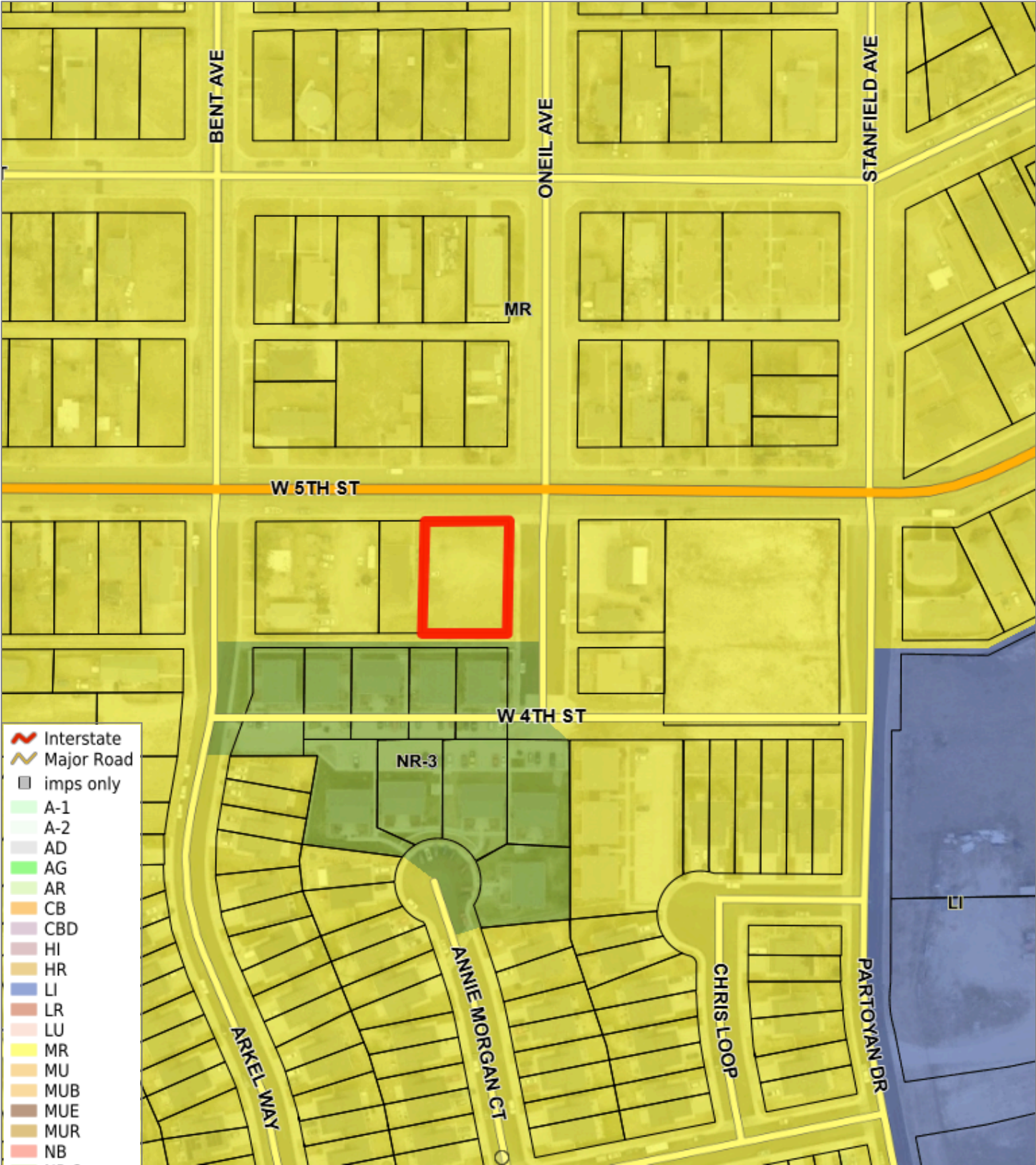
STAFF RECOMMENDATION:

Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body with the following conditions:

- a. Addition of a water and sewer service line easement needs to be on the map at the request of the Board of Public Utilities prior to signing of the plat.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Master Application Form
4. Preliminary Plat
5. Final Plat

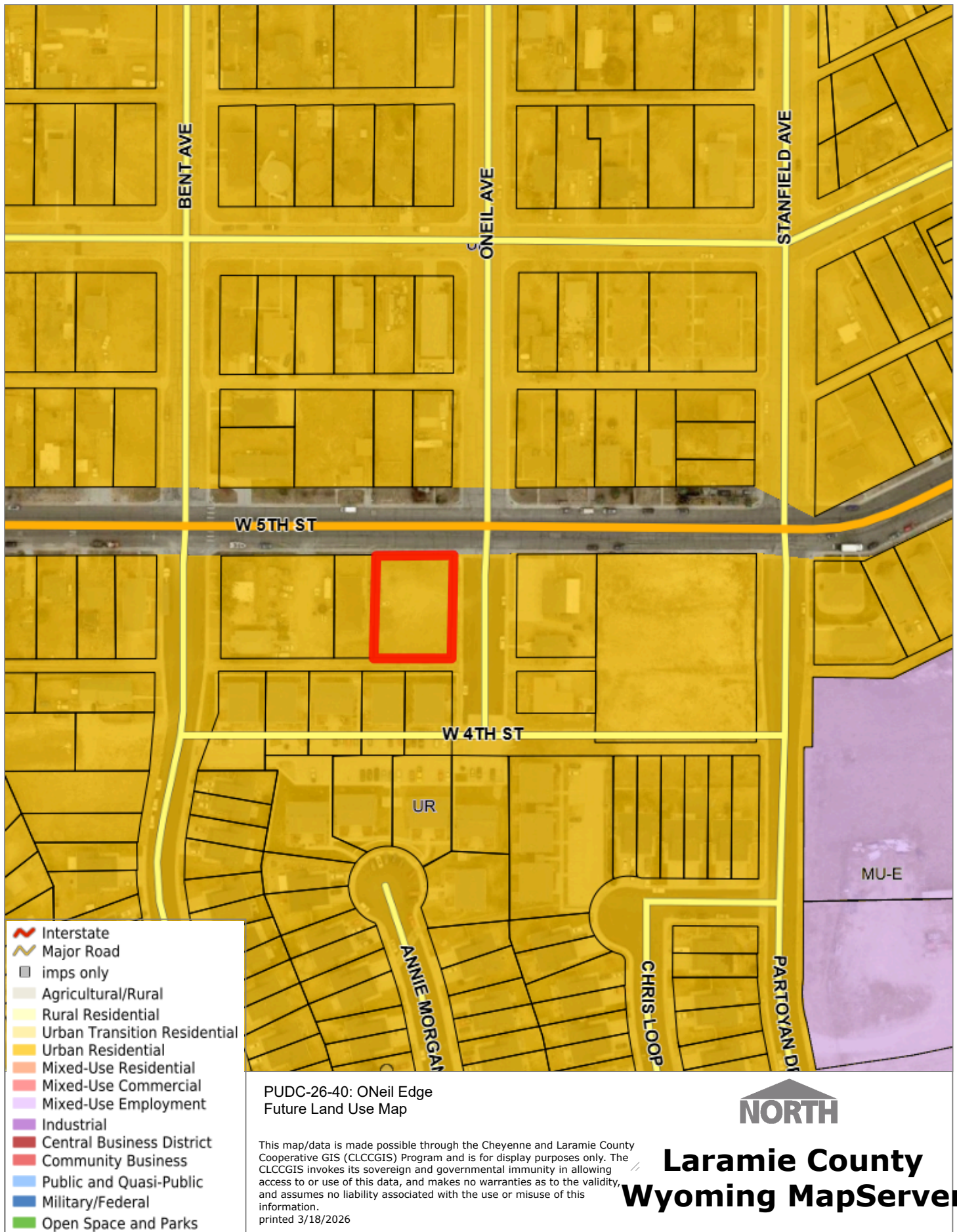


PUDC-26-40: O'Neil Edge
Zoning Map

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, and makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.
printed 3/18/2026



Laramie County
Wyoming MapServer



C* Cheyenne, WY

March 30, 2026

Record No: PUDC-26-40

Plat – Expedited

Status: Active

Submitted On: 2/12/2026

Primary Location601 W 5TH ST
Cheyenne, WY 82007**Owner**CHEYENNE REAL ESTATE LLC 401K ET AL
255 STOREY BLVD CHEYENNE, WY
820093526

Application Information

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

An expedited review is when both a preliminary and final plat are submitted to the Planning Commission together. To be eligible for expedited review the preliminary plat shall contain no significant planning, design, and engineering issues. Upon determination by staff, the applicant may submit a preliminary and final plat to the Planning Commission.*



I acknowledge the that Expedited status is not guaranteed.*

**Written Statement***

Two infill lots to be divided into 6 SD3 lots

-4 lots front O'Neil Ave. These dwellings will be the same as those platted and near completion at 5th Street Towns. Admin adjustment needed for 10' rear setback and 10' front setback (using infill exemption in UDC)

-2 lots front 5th St. The parking will be alley loaded. Admin adjustment needed for reduced frontage width from 30' to 26.5'

Project Name* ?

O'Neil Edge

Plat Title* ?

O'Neil Edge

Current Subdivision* ?

Robert's Place

Project area (acres)*

0.3

Proposed Lots* ?

6

Pre-application Meeting Date

02/11/2026

Park Fees are due at time of signing of the final plat mylar (see UDC 4.2.5). I acknowledge that this plat may be required to pay plat-level Park Fees.*



Public Improvements are required with platting actions. Please select the option that best demonstrates your intent for the public streets and other infrastructure adjacent to or within the plat boundary.* ?

Owner(s) (or developers) behind the plat application will construct the needed infrastructure.

Review Criteria

The following review criteria are found in the UDC regarding a Preliminary Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.1.2.d.1).*



The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities (2.1.2.d.2).*



The division of land meets the purposes, intent, and all applicable standards in Article 4 (2.1.2.d.3).*



Any phasing proposed in the application is clearly indicated and demonstrates a logical and wellplanned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned (2.1.2.d.4).*



The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts (2.1.2.d.5).*



Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements (2.1.2.d.6).*



All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance (2.1.2.d.7).*



The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property (2.1.2.d.8).*



The application is not harmful to the public health, safety, and welfare (2.1.2.d.9).*



Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description (2.1.2.d.10).*



The following review criteria are found in the UDC regarding a Final Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan (2.1.3.d.1).*



The application meets any conditions or modifications of the approved preliminary plat (2.1.3.d.2). (Not applicable at time of application for an expedited plat)

The application meets the purposes, intent, and applicable standards of Article 4 (2.1.3.d.3).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Brandon Swain

Feb 12, 2026

Staff Use

Number of Lots (for fee) 

6

Comment Letter ready 



Staff Report Ready 

☐

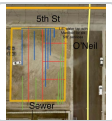
Final Decision Ready 

☐

Park Fee acreage  

—

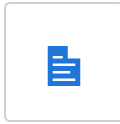
Attachments

	Utility Plan IMG_2726.jpeg Uploaded by Brandon Swain on Feb 12, 2026 at 7:54 PM	REQUIRED
	26121 EXISTING CONDITIONS.pdf 26121 EXISTING CONDITIONS.pdf Uploaded by Shane Hansen on Feb 20, 2026 at 10:50 AM  2 Versions	
	26-40 Schedule Letter 26-40 Application Letter.pdf Uploaded by Morgan Dennis on Feb 23, 2026 at 3:53 PM	
	26121 ONEIL EDGE-3-26-26.pdf 26121 ONEIL EDGE-3-26-26.pdf Uploaded by Shane Hansen on Mar 26, 2026 at 3:38 PM	
	Letter of Authorization letterofauthorization.pdf Uploaded by Brandon Swain on Feb 12, 2026 at 8:39 PM	REQUIRED
	Preliminary Plat Map Oneil Edge.pdf Uploaded by Brandon Swain on Feb 12, 2026 at 7:58 PM	REQUIRED
	Final Plat Map 26121_ONEIL_EDGE-3-26-26_Thu_Mar_26_2026_15-38-32.pdf Uploaded by Connor White on Mar 27, 2026 at 10:14 AM  2 Versions	REQUIRED

**Open Space Approach****REQUIRED**

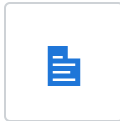
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**Drainage Worksheet / Study****REQUIRED**

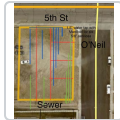
drainageworksheet2012201207301309036374.pdf

Uploaded by Brandon Swain on Feb 12, 2026 at 8:39 PM

**Transportation Workscheet / Study****REQUIRED**

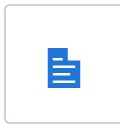
transportationworksheetudc201411131212558720.pdf

Uploaded by Brandon Swain on Feb 12, 2026 at 8:39 PM

**Transportation Network Plan****REQUIRED**

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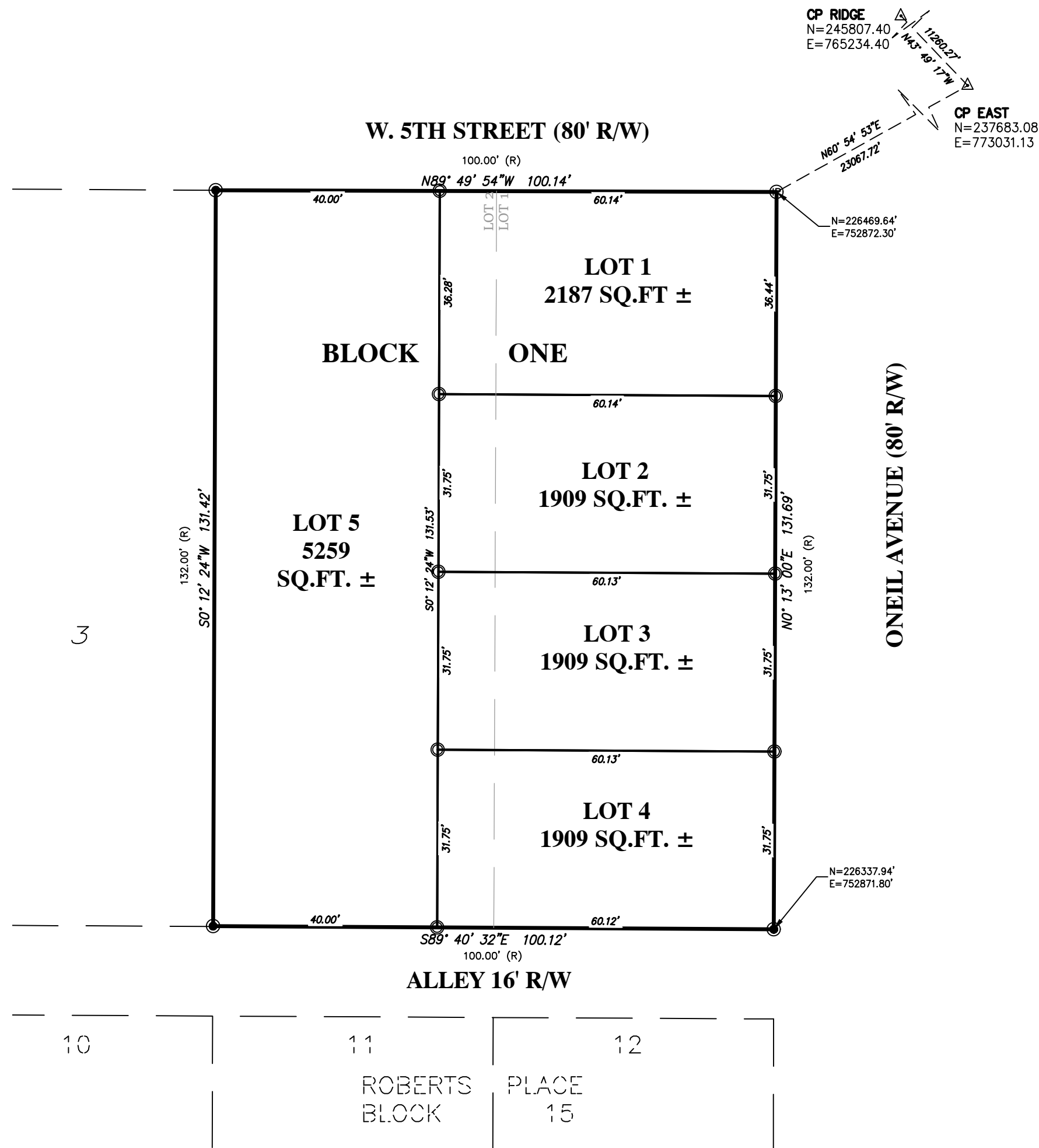
Uploaded by Brandon Swain on Feb 12, 2026 at 7:54 PM

**Comment Letter**

PUDC-26-40 Comment Letter.pdf

Uploaded by Morgan Dennis on Mar 6, 2026 at 11:00 AM

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LEGEND

- SET 5/8" X 24" LONG REBAR WITH 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- FOUND 1 1/2" ALUMINUM CAP
- ⊙ FOUND 1/2" IRON PIPE
- (R) DENOTES RECORD DATA

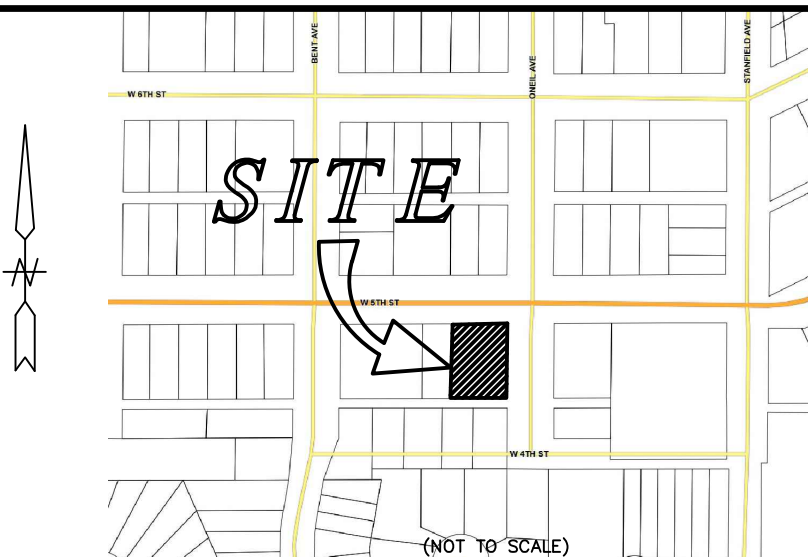
VACATION STATEMENT

IT IS THE INTENT OF THIS REPLAT TO VACATE ALL OF LOT S 1 AND 2, BLOCK 15, ROBERTS PLACE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING. EXISTING EASEMENTS TO REMAIN.

NOTES

1. BASIS OF BEARINGS - CITY OF CHEYENNE CONTROL NETWORK FROM CONTROL POINTS RIDGE AND EAST. WYOMING STATE PLANE COORDINATES, EAST ZONE, NAD83-2011, US SURVEY FEET, SHOWN AS (NAD83WY-E).
2. ALL UNMONUMENTED LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE TO BE MONUMENTED WITH 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON 5/8"x24" REBAR.
3. NO PORTION OF THE LANDS CONTAINED WITHIN THIS RE- PLAT BOUNDARY FALL WITHIN A 500-YEAR FEMA SFHA PER F.I.R.M. PANEL No.56021C1352F, DATED JANUARY 17, 2007.

VICINITY MAP



FILING RECORD

DEDICATION

Know all persons by these presents that; CHEYENNE REAL ESTATE LLC 401K PLAN AND CO & KO CARMINE LLC 401K, owners in fee simple of Lots 1 and 2, Block 15, Roberts Place, City of Cheyenne, Laramie County, Wyoming.

Have caused the same to be Surveyed, Vacated, and Replatted to be known as, ONEIL EDGE, and do hereby declare the Subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires.

by: James Bowers, Trustee for CHEYENNE REAL ESTATE LLC 401K PLAN

Colton S. Carlson, Trustee for CHEYENNE REAL ESTATE LLC 401K

ACKNOWLEDGEMENT

STATE OF _____)
COUNTY OF _____) SS

The foregoing instrument was acknowledged before me this ____ day of _____ 2026, by James Bowers, Trustee for CHEYENNE REAL ESTATE LLC 401K PLAN.

Notary Public,

My Commission Expires: _____

ACKNOWLEDGEMENT

STATE OF _____)
COUNTY OF _____) SS

The foregoing instrument was acknowledged before me this ____ day of _____ 2026, by Colton S. Carlson, Trustee for CHEYENNE REAL ESTATE LLC 401K.

Notary Public,

My Commission Expires: _____

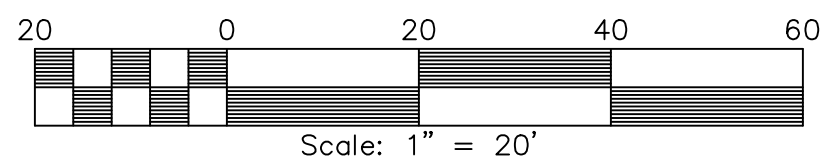
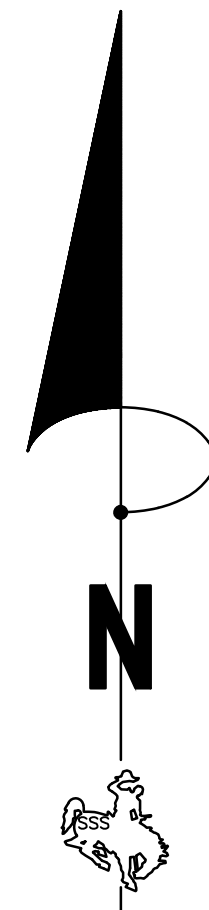
APPROVALS

Approved by the City of Cheyenne Planning Commission this ____ day of _____, 2026.

Planning & Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this ____ day of _____, 2026.

Mayor ATTEST: City Clerk



CERTIFICATE OF SURVEYOR

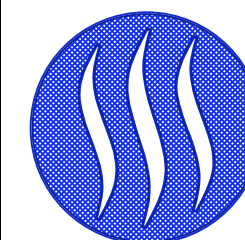
I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

REVISED: 3/26/2026
26121 ONEIL EDGE.DWG

ONEIL EDGE

AN EXPEDITED REPLAT
OF LOT 1 AND LOT 2, BLOCK 15,
ROBERTS PLACE,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING

PREPARED FEBRUARY 2026



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1102 WEST 19th ST. CHEYENNE, WY. 82001 o (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 o (307) 322-9789
www.SteilSurvey.com o info@SteilSurvey.com